

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOSEPH CARTER,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER MOISES
CONTRERAS, SHIELD NUMBER 12376, AND
SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO THE 44TH PRECINCT,

Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates Bronx
County as the place of trial.

Basis of venue is place
of occurrence.

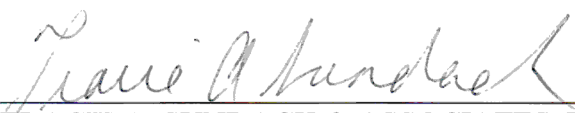
SUMMONS

Plaintiff resides at
7116 County Route 132
Willard, New York 14588

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
September 5, 2018



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
JOSEPH CARTER
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER MOISES CONTRERAS,
SHIELD NUMBER 12376
44th Precinct
2 East 169th Street
Bronx, New York 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JOSEPH CARTER,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER MOISES
CONTRERAS, SHIELD NUMBER 12376, AND
SEVERAL UNIDENTIFIED POLICE OFFICERS
ASSIGNED TO THE 44TH PRECINCT,

VERIFIED COMPLAINT

Defendants.

-----X

Plaintiff JOSEPH CARTER by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT respectfully alleges as follows:

1. That Plaintiff JOSEPH CARTER is a black male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.

2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

3. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof, a duly authorized police department, authorized to perform all functions of a police department under New York State Law, acting under the direction, control and supervision of the aforementioned municipal corporation CITY OF NEW YORK.

4. That at all times hereinafter mentioned, Defendant POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, was employed by Defendant CITY OF NEW YORK as a police officer.

5. That at all times hereinafter mentioned, Defendant POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, acted within the scope of his employment for Defendant CITY OF NEW YORK.

6. That at all times hereinafter mentioned, Defendant POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

7. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

8. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of their office as police officers for said city and state.

10. That on August 14, 2017, at approximately 11:55 P.M., Plaintiff JOSEPH CARTER was lawfully at the intersection of College Avenue and East 170th Street in the County of Bronx, City and State of New York (hereinafter the "INCIDENT LOCATION") when he was assaulted by an unidentified individual.

11. That shortly thereafter he was approached by members of the New York City Police Department including Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT who asked Plaintiff JOSEPH CARTER for identification and requested information as to what had happened to Plaintiff. Plaintiff JOSEPH CARTER complied with the request for identification and explained that he had been the victim of an assault. Upon

information and belief, while Plaintiff and the Defendant Police Officers were talking a New York State Registered Ambulance (Ambulance Plate No. 8251) arrived at the INCIDENT LOCATION in response to a call for an ambulance.

12. After speaking with Plaintiff JOSEPH CARTER, Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT requested that Plaintiff get into the ambulance so that he could be transported to Lincoln Medical Center (234 East 149th Street, Bronx, New York 10451) for medical care.

13. In response, Plaintiff JOSEPH CARTER stated that he did not wish to be transported to Lincoln Medical Center, that he did not believe that he required medical attention, and if he changed his mind he would go to BronxCare Health System (1650 Grand Concourse, Bronx, New York), a hospital that was only a few blocks away.

14. That following Plaintiff JOSEPH CARTER's refusal of medical treatment, Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT stated that Plaintiff was required to enter the ambulance so that he could be transported to Lincoln Medical Center.

15. That Plaintiff JOSEPH CARTER again stated that he was not in need of medical attention and did not wish to be transported to Lincoln Medical Center. Plaintiff JOSEPH CARTER then started to walk away from the INCIDENT LOCATION.

16. At that time Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT, without any just cause or provocation, willfully, wantonly, maliciously, and recklessly assaulted and attacked Plaintiff JOSPEH CARTER grabbing him by the arms, throwing him to the ground, and striking Plaintiff. During the course of this assault Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT tased Plaintiff

JOE CARTER. In addition, after gaining physical control over Plaintiff JOE CARTER, and while Plaintiff was handcuffed and on the ground, Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT again tased Plaintiff without cause or justification. Upon information and belief, at some point during the assault, Plaintiff JOE CARTER lost consciousness and when he awoke Plaintiff was in Lincoln Medical Center handcuffed to a hospital bed.

17. That Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT handcuffed Plaintiff JOSEPH CARTER and placed him under arrest, despite Defendant's knowledge that they lacked reasonable grounds or probable cause to do so.

18. That Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT placed Plaintiff JOSEPH CARTER into an ambulance and had him transported to Lincoln Medical Center ((234 East 149th Street, Bronx, New York 10451) against his will.

19. That Plaintiff JOSEPH CARTER was treated at Lincoln Medical Center and released without charge.

20. As a result of the foregoing, Plaintiff JOSEPH CARTER sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

21. That within 90 days of the happening of the complained of incident, but more than 30 days prior to the commencement of this action, Plaintiff JOSEPH CARTER duly presented, served, and filed a Notice of Claim, in writing, upon Comptroller of Defendant CITY OF NEW YORK setting forth the name and post office address of claimant; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

22. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF

NEW YORK, POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT.

23. Upon information and belief, Defendant CITY OF NEW YORK waived its right to a municipal hearing regarding the above claim because Plaintiff JOSEPH CARTER is incarcerated.

24. This action is commenced within one year and ninety days after the cause of action arose.

**AS AND FOR A FIRST CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR ASSAULT**

25. Plaintiff JOSEPH CARTER repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

26. The aforementioned acts of Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICER ASSIGNED TO THE 44TH PRECINCT placed Plaintiff JOSEPH CARTER in apprehension of imminent harmful and offensive bodily contact.

27. As a result of Defendants' conduct, Plaintiff JOSEPH CARTER has suffered physical pain and injury, mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A SECOND CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR BATTERY**

28. Plaintiff JOSEPH CARTER repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

29. That Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT touched Plaintiff JOSEPH CARTER in a harmful and offensive manner.

30. That Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT did so without privilege or consent from Plaintiff JOSEPH CARTER.

31. As a result of Defendants' conduct, Plaintiff JOSEPH CARTER has suffered physical pain and injury, mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A THIRD CAUSE OF ACTION
FOR EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

32. Plaintiff JOSEPH CARTER repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

33. That the level of force employed by Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT was objectively unreasonable, unnecessary, unjustified and was delivered maliciously and sadistically to punish Plaintiff JOSEPH CARTER, all in violation of Plaintiff JOSEPH CARTER's constitutional rights.

34. As a result of the aforementioned conduct of Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT, Plaintiff JOSEPH CARTER was subjected to excessive force and sustained physical injuries.

**AS AND FOR A FOURTH CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR FALSE ARREST**

35. Plaintiff JOE CARTER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

36. Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT, arrested Plaintiff JOE CARTER in the absence of probable cause and without a warrant.

37. As a result of the aforesaid conduct by Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT, Plaintiff JOE CARTER was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, confined, and incarcerated by the Defendants.

38. The aforesaid actions by the Defendants constituted a deprivation of Plaintiff JOE CARTER's rights.

AS AND FOR A FIFTH CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR FALSE IMPRISONMENT

39. Plaintiff JOE CARTER repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

40. As a result of the foregoing, Plaintiff JOE CARTER was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

41. Plaintiff JOE CARTER was conscious of said confinement and did not consent to same.

42. The confinement of Plaintiff JOE CARTER was without probable cause and was not otherwise privileged.

43. As a result of the aforementioned conduct, Plaintiff JOE CARTER has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

AS AND FOR A SIXTH CAUSE OF ACTION FOR FALSE ARREST
UNDER 42 U.S.C. § 1983

44. Plaintiff JOE CARTER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

45. Plaintiff JOE CARTER had not committed any offense and Defendant CITY OF NEW YORK through its agents, servants, and/or employees including, but not limited to, Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT, did not have reasonable grounds or probable cause to believe that Plaintiff JOE CARTER had committed any offense.

46. Defendant CITY OF NEW YORK through its agents, servants, and/or employees including, but not limited to, Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD

NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT, was aware that probable cause did not exist for the arrest and detention of Plaintiff JOE CARTER and that said arrest and detention was illegal, without justification or excuse, and without authority of law.

47. Upon information and belief, in all of the wrongful acts above alleged, Defendant CITY OF NEW YORK through its agents, servants, and/or employees including, but not limited to, Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff JOE CARTER and such actions were committed in bad faith.

48. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff JOE CARTER suffered damage, all of which is in violation of his rights under the laws and Constitution of the United States, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3).

49. As a proximate result of the actions of Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT, Plaintiff JOE CARTER's liberty was restricted for an extended period of time, he was put in fear for his safety, he was humiliated and subjected to confinement, without probable cause.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR FALSE IMPRISONMENT
UNDER 42 U.S.C. § 1983**

50. Plaintiff JOE CARTER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

51. Plaintiff JOE CARTER was falsely imprisoned on August 14, 2017, by Defendant CITY OF NEW YORK, through its agents, servants, and employees, including but not limited to

Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

52. Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT intended to confine Plaintiff JOE CARTER and Plaintiff was conscious of the confinement and Plaintiff did not consent to the confinement.

53. Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff JOE CARTER and damaging Plaintiff in his reputation and depriving him of his liberty.

54. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff JOE CARTER suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

55. As a proximate result of the actions of Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT, Plaintiff JOE CARTER's liberty was restricted for an extended period of time, he was put in fear for his safety, he was humiliated and subjected to confinement, without probable cause.

AS AND FOR AN EIGHTH CAUSE OF ACTION
FOR FAILURE TO INTERVENE

56. Plaintiff JOSEPH CARTER repeats, reiterates and realleges each and every allegation contained in this complaint.

57. That each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff JOSEPH CARTER's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

58. That, as a result of the aforementioned conduct of the individual Defendants, Plaintiff JOSEPH CARTER's constitutional rights were violated and he was subjected to cruel and unusual punishment and sustained physical injuries.

AS AND FOR A NINTH CAUSE OF ACTION
FOR MUNICIPAL LIABILITY

59. Plaintiff JOSEPH CARTER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

60. Defendant POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

61. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to (a) using force in an excessive, unreasonable, unnecessary and unjustified manner, and (b) using force with the purpose and intent of maliciously and sadistically punishing individuals in their custody.

62. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff JOSEPH CARTER.

63. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff JOSEPH CARTER as alleged herein.

64. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff JOSEPH CARTER as alleged herein.

65. Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT, while acting under the color of state law, was directly and actively involved in violating Plaintiff JOSEPH CARTER's constitutional rights.

66. All of the foregoing acts by defendants deprived Plaintiff JOSEPH CARTER of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. Not to have cruel and unusual punishment imposed upon him;
- E. To receive equal protection under the law.

**AS AND FOR A TENTH CAUSE OF ACTION
FOR NEGLIGENT HIRING AND RETENTION**

67. Plaintiff JOSEPH CARTER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

68. That Defendant CITY OF NEW YORK was careless and reckless in hiring and retaining as and for its employees POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employees who lacked the mental capacity and the ability to function as employees of

Defendant CITY OF NEW YORK; in that the defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

69. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION
FOR NEGLIGENT TRAINING AND SUPERVISION**

70. Plaintiff JOSEPH CARTER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

71. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT in the exercise of their employment functions, and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff JOSEPH CARTER. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

72. The failure of Defendant, CITY OF NEW YORK, to train, supervise, discipline or in anyway control Defendants POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT in the exercise of their employment functions and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out

willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff JOSEPH CARTER

AS AND FOR A TWELFTH CAUSE OF ACTION
FOR RESPONDEAT SUPERIOR LIABILITY

73. Plaintiff JOSEPH CARTER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

74. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

75. As a result of the foregoing, Plaintiff JOSEPH CARTER is entitled to compensatory damages in the sum of Two Million Dollars (\$2,000,000.00) and is further entitled to punitive damages in the sum of Four Million Dollars (\$4,000,000.00).

WHEREFORE Plaintiff JOSEPH CARTER demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER MOISES CONTRERAS, SHIELD NUMBER 12376, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 44TH PRECINCT, jointly and severally, in the amount of Two Million Dollars (\$2,000,000.00) in compensatory damages and Four Million Dollars (\$4,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
September 5, 2018



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
JOSEPH CARTER
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
September 5, 2018



TRACIE A. SUNDACK